

FEDERAL SYSTEM

FEDERAL TEST -> HISTORY -> FEATURES -> FOUR BALANCES -> ASYMMETRY -> REFORM -> VERDICT

Follow the cyan rail from the federal test to the integrated verdict. The final grey stage is optional analytical enrichment.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

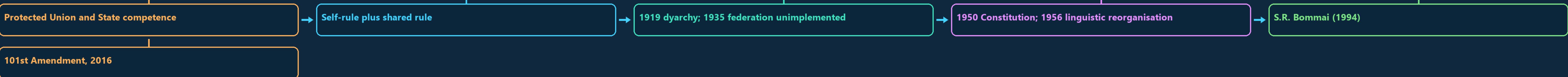
Approval: FALSE: pending user review; prior artefacts unchanged during rendering.

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 FEDERAL TEST AND CONSTITUTIONAL ORIGIN

DIVIDED POWER INTERGOVERNMENTAL PROCESS UNION OF STATES NO SECESSION COMPACT



TEST

- Protected Union and State competence
- Self-rule plus shared rule

TIMELINE

- 1919 dyarchy; 1935 federation unimplemented
- 1950 Constitution; 1956 linguistic reorganisation

TURNING POINTS

- S.R. Bommai (1994)
- 101st Amendment, 2016

MECHANISM / VERDICT — The legal test is protected competence; the historical path explains why the Union was designed strongly.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indian federalism protects divided authority and organises the continuing process through which governments share rule.

01

STAGE 01 FEDERAL CORE AND UNION-WEIGHTED ADAPTATION

DUAL POLITY SEVENTH SCHEDULE ARTICLE 248 NOT PURELY UNITARY

FEDERAL CORE

- Dual polity, supreme written Constitution
- Lists, selective rigidity, courts, Rajya Sabha

UNION TILT

- Article 3, residue and State-field gateways
- Single citizenship, integrated institutions, emergencies

QUALIFICATION

- Rajya Sabha seats are unequal
- Strong Union does not make States departments

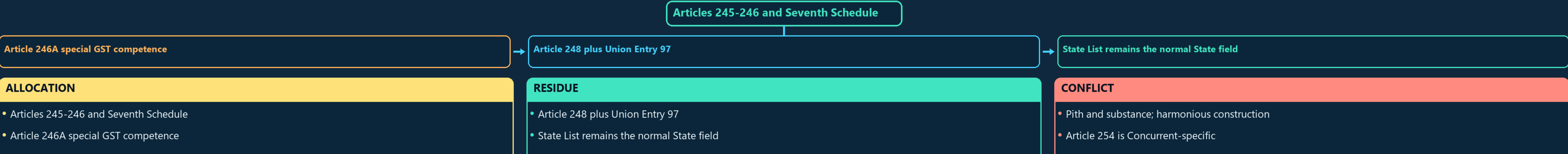
MECHANISM / VERDICT — Federal safeguards and centralising devices must be weighed together rather than counted mechanically.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: India is constitutionally federal, Union-weighted and asymmetrical rather than purely federal or purely unitary.

02

STAGE 02 LEGISLATIVE ALLOCATION AND CONFLICT

ARTICLES 245-246 246A 248 + ENTRY 97 ARTICLE 254 LIMIT



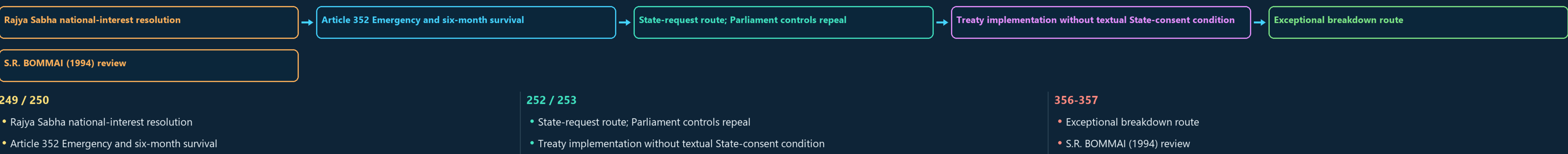
MECHANISM / VERDICT — The sequence is characterise, reconcile and resolve; Article 254 is not a universal supremacy clause.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Legislative federalism allocates authority first, reconciles overlap second and applies priority rules only where conflict remains.

03

STAGE 03 PARLIAMENT ENTERING THE STATE FIELD

ARTICLE 249 ARTICLE 250 ARTICLE 252 ARTICLE 253 NO GENERAL LIST II POWER



MECHANISM / VERDICT — Distinct gateways preserve State autonomy by requiring a named national, emergency, consensual or international basis.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Parliament has no general State List competence; each entry route requires its own constitutional trigger and limit.

04

STAGE 04 EXECUTIVE AND INTERGOVERNMENTAL PROCESS

256-257 258 / 258A ARTICLE 263 ARTICLE 312

DIRECTIONS

- Articles 256-257: compliance and non-impediment
- No general administrative takeover

ENTRUSTMENT / SERVICES

- Articles 258 and 258A reciprocal entrustment
- Article 312 Rajya Sabha trigger

CONSULTATION

- Article 263 Inter-State Council
- Inquiry, discussion and recommendation

MECHANISM / VERDICT — Directions, entrustment, services and consultation solve different problems and must not be merged.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Executive federalism is legitimate when coordination remains text-bounded, participatory, reasoned and accountable.

05

STAGE 05 FISCAL BALANCE AND GST SHARED RULE

VERTICAL IMBALANCE HORIZONTAL IMBALANCE ARTICLE 280 MOHIT MINERALS (2022)

IMBALANCES

- Vertical: mismatch between levels
- Horizontal: unequal capacity and need among States

TRANSFER SYSTEM

- Articles 268-281 and Finance Commission
- Articles 275 and 282 are distinct grant routes

GST

- 101st Amendment: 246A, 269A, 279A
- MOHIT MINERALS (2022); recommendations not binding

CURRENT

- 16th FC report submitted 17 Nov 2025
- 41 per cent is a dated recommendation

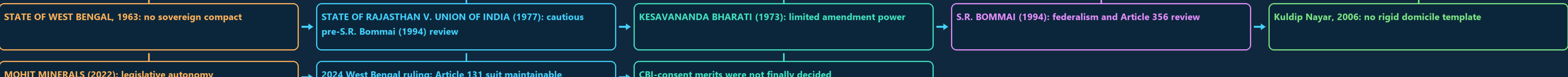
MECHANISM / VERDICT — A dated Finance Commission recommendation must not be converted into a timeless constitutional percentage.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Fiscal federalism turns formal responsibility into governing capacity through transparent devolution, equalisation and negotiated shared taxation.

06

STAGE 06 JUDICIAL DOCTRINE AND BASIC-STRUCTURE FLOOR

ARTICLE 131 KESAVANANDA BHARATI (1973) S.R. BOMMAI (1994) STATE OF RAJASTHAN V. UNION OF INDIA (1977) / RELATED DOCTRINE, 1977 2024 WEST BENGAL RULING



EARLY POSITION

- STATE OF WEST BENGAL, 1963: no sovereign compact
- STATE OF RAJASTHAN V. UNION OF INDIA (1977): cautious pre-S.R. Bommai (1994) review

BASIC STRUCTURE

- KESAVANANDA BHARATI (1973): limited amendment power
- S.R. BOMMAI (1994): federalism and Article 356 review

LATER REFINEMENT

- Kuldip Nayar, 2006: no rigid domicile template
- MOHIT MINERALS (2022): legislative autonomy

RECENT

- 2024 West Bengal ruling: Article 131 suit maintainable
- CBI-consent merits were not finally decided

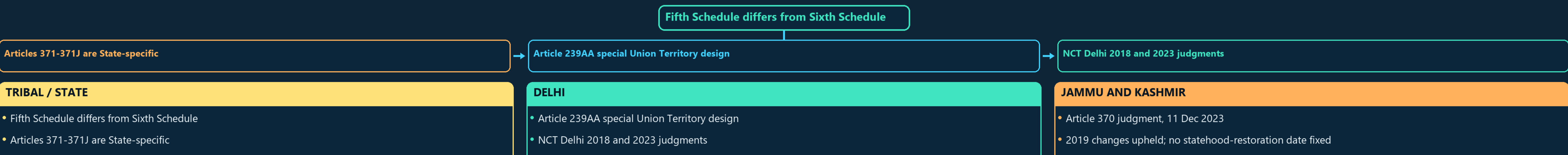
MECHANISM / VERDICT — Holdings must be separated from inference, and preliminary rulings must not be presented as final merits decisions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The judiciary protects a minimum federal floor but cannot replace political consultation or fiscal bargaining.

07

STAGE 07 ASYMMETRY, DELHI AND JAMMU AND KASHMIR

ASYMMETRICAL FEDERALISM FIFTH / SIXTH SCHEDULES ARTICLE 239AA COMMON CITIZENSHIP NO LIVE ARTICLE 370 STATUS



MECHANISM / VERDICT — Different constitutional arrangements do not imply different grades of Indian citizenship.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Asymmetry adapts territorial institutions while preserving one citizenship and one constitutional order.

08

STAGE 08 WORKING MODES AND FUNCTIONAL FEDERALISM

COOPERATION COMPETITION BARGAINING FUNCTIONAL FEDERALISM LOCAL != CO-SOVEREIGN

MODES

- Cooperative, competitive and bargaining
- Confrontational and coercive pressures

FUNCTIONS

- GST, health, disasters and infrastructure
- Cross-border tasks require joint implementation

LOCAL TIER

- Parts IX and IXA recognise local government
- Articles 243G/243W make devolution State-mediated

MECHANISM / VERDICT — A third governance tier is not a third co-sovereign constituent layer of the federation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Territorial allocation remains the legal base while functional interdependence explains how modern government actually operates.

09

STAGE 09 CHALLENGES AND REFORM CHANNELS

CONSTITUTIONAL TRUST PREDICTABLE FINANCE NEUTRAL GOVERNOR S.R. BOMMAI (1994) DISCIPLINE NO ABSOLUTE LABEL

POLITICAL

- Governor friction and Article 356 misuse
- Regional representation and inter-State disputes

FISCAL

- Cesses, conditional schemes and borrowing
- GST autonomy and common-market tension

INSTITUTIONAL

- Regular Inter-State Council and stronger scrutiny
- Prompt reasons, floor tests and neutral offices

LOCAL

- Functions, funds and staff
- Consultation before standardisation

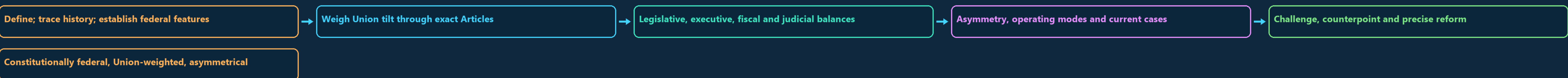
MECHANISM / VERDICT — Reform should improve the manner of exercising power without disabling national action for genuine externalities.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Union capacity earns federal legitimacy when exercised through competence, necessity, consultation, reasons and review.

10

STAGE 10 INTEGRATED ANSWER SPINE AND VERDICT

CLAIM NAMED EVIDENCE MECHANISM QUALIFICATION GRADED VERDICT



BUILD

- Define; trace history; establish federal features
- Weigh Union tilt through exact Articles

ANALYSE

- Legislative, executive, fiscal and judicial balances
- Asymmetry, operating modes and current cases

EVALUATE

- Challenge, counterpoint and precise reform
- Constitutionally federal, Union-weighted, asymmetrical

MECHANISM / VERDICT — A strong Union and protected States are compatible when power remains bounded, financed, consultative and reviewable.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The best answer proves a federal core, qualifies Union predominance and evaluates whether intergovernmental practice preserves constitutional trust.

E

EXTRA OPTIONAL SCHOLAR AND COMPARATIVE LIFT

OPTIONAL DEPTH SCHOLAR LABELS COMPARATIVE MODELS CORE ALREADY COMPLETE

SCHOLARS

- Wheare: quasi-federal; Austin: cooperative
- Morris-Jones: bargaining; Alexandrowicz: sui generis

COMPARISON

- United States: coming-together and equal Senate
- Canada: strong-centre comparison

OPTIONAL STATUS — This optional enrichment is unnecessary for a competent core answer and must remain subordinate to constitutional analysis.